

26STCV08352 26STCV08352

County: los-angeles

Division: Civil Law and Motion

Department: U

Hearing date: 2026-08-12

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Case Number: 26STCV08352 Hearing Date: August 12, 2026 Dept: U

SUPERIOR COURT OF THE STATE OF CALIFORNIA

FOR THE COUNTY OF LOS ANGELES - NORTHWEST DISTRICT

SHAHROOZ BIGONAH, an individual,

Plaintiff,

vs.

JAYESHKUMAR JAYKRISHNA AND INSURANCE,

Defendants.

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CASE NO: 26STCV08352

[TENTATIVE] RULING RE: PLAINTIFF'S MOTION TO VACATE PROCEEDINGS AND DISMISS ACTION FOR IMPROPER VENUE, LACK OF JURISDICTION, AND IRREGULARITY

Dept. U

8:30 a.m.

August 12, 2026

BACKGROUND

This case is a landlord-tenant action filed by Plaintiff Shahrooz Bigonah against Defendant "Jayeshkumar Jaykrishna and Insurance." Plaintiff is self-represented.¹

On March 16, 2026, Plaintiff filed his complaint against Defendant.

On April 15, 2026, Plaintiff filed a motion to vacate the proceedings and dismiss the action for improper venue, lack of jurisdiction, and irregularity.

As of 10:00 A.M. on August 7, 2026, nothing further had been filed in this matter by any party.

RULING

The motion is tentatively granted. At the hearing, the Court will welcome Plaintiff's clarification as to the intent of his motion.

LEGAL STANDARD

An action may be dismissed, "[w]ith or without prejudice, upon written request of the plaintiff to the clerk, filed with papers in the case, or by oral or written request to the court at any time before the actual commencement of trial, upon payment of the

costs, if any.” Code Civ. Proc., § 581 (b)(1).

DISCUSSION

Plaintiff moves to vacate the proceedings and dismiss the action for improper venue, lack of jurisdiction, and irregularity.

If Plaintiff truly intends to dismiss his complaint, Plaintiff may do so. See Code Civ. Proc., § 581 (b)(1). The Court is, however, concerned by irregularities in Plaintiff’s motion that make it unclear whether Plaintiff truly intends to dismiss this action.

Plaintiff’s own motion complains that Plaintiff’s filing of the action in this Court “reflects either gross negligence or intentional forum shopping.” (Motion, p. 2:19-21.) Plaintiff’s own motion states that “Plaintiff knew or should have known that this case did not belong in” this Court. (Motion, p. 3:24-26.) Plaintiff’s own motion continues, “Defendant respectfully requests that the Court...” (Motion, p. 4:19-20.) The motion thus seems to indicate that Plaintiff believes he is a defendant in this case. He is not.

Other irregularities include that the caption page on Plaintiff’s motion lists Defendant Avalon Bay Woodland Hills, which is not a defendant named in the complaint. Finally, the end of Plaintiff’s motion references case #26STCV09219, which does not match the case number assigned to this case (#26STCV08352).

If Plaintiff truly intends to dismiss this case, his motion is granted. Given irregularities in Plaintiff’s motion, however, the Court welcomes Plaintiff’s clarification as to the intent of his motion at the hearing thereon.

CONCLUSION

Plaintiff Shahrooz Bigonah’s motion to dismiss his complaint is GRANTED.

The Clerk is ORDERED to give notice.

DATED: August 12, 2026

Lee S. Arian

Judge of the Superior Court